

The National Bank For Agriculture And Rural Development General Regulations, 1982

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The National Bank For Agriculture And Rural Development General Regulations, 1982

Rule THE-NATIONAL-BANK-FOR-AGRICULTURE-AND-RURAL-DEVELOPMENT-GENERAL-REGULATIONS-1982 of 1982

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The National Bank For Agriculture And Rural Development General Regulations, 1982

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In exercise of the powers conferred by sub-section (3) of section 60 of the National Bank for Agriculture and Rural Development Act, 1981 (61 of 1981), the Reserve Bank of India, in consultation with the Central Government, hereby makes the following regulations for the National Bank for Agriculture and Rural Development, namely:-

Chapter I

Introductory

1.

Short title and commencement

-(1) These regulations may be called The National Bank for Agriculture and Rural Development General Regulations, 1982.

(2)

They shall come into force on the 12th July, 1982.

2.

Definitions

.-In these regulations, unless there is anything repugnant in the subject or context-

(a)

"Act" means the National Bank for Agriculture and Rural Development Act, 1981 (61 of 1981);

(b)

"section" means a section of the Act;

(c)

other expressions used and not defined in these regulations but used in the Act have the meaning respectively assigned to them in the Act.

Chapter II

Meetings Of The Board

3.

Meetings of the Board

-(1) The Board shall ordinarily meet once a quarter in each year.

(2)

Meetings of the Board shall be convened by the Chairman, and, in his absence, by the Managing Director and shall be ordinarily held at Bombay but if so directed by the Board, may be held at any other place in India.

(3)

Any five Directors may, for the purpose of the consideration of the business to be specified in their requisition, require the Chairman to convene a meeting of the Board and the Chairman shall, on receipt of such requisition, convene a meeting of the Board giving sufficient notice:

Provided that the date of the meeting so convened shall not be later than 21 days from the date of the requisition.

(4)

Except in respect of the first meeting of the Board, ordinarily not less than one clear fortnight's notice shall be given of each meeting of the Board and such notice shall be sent to every Director to his registered address. Should it be found necessary to convene an emergency meeting, a notice of not less than seven days shall be given to every Director who is at that time in India, to enable him to attend.

(5)

No business other than that for which the meeting was convened shall be discussed at the meeting of the Board, except with the consent of the Chairman of the meeting and a majority of the Directors present, unless one clear week's notice has been given of the same in writing to the Chairman.

(6)

Six Directors shall form a quorum for the transaction of the business at a meeting of the Board.

(7)

A copy of the proceedings of each meeting of the Board shall be circulated for the information of the Directors as soon as possible after the minutes of that meeting are signed by the Chairman.

(8)

[Participation of the directors in meetings under these regulations may be either in person or through video conferencing or through other audio-visual means.

(9)

Any participation of the directors through video conferencing or other audio-visual means shall be counted for the purpose of quorum.]

[Inserted by Notification No. NB.Secy/C-4/2018-19, dated 26.4.2018 (w.e.f. 11.10.1982).]

4.

Fees for Directors

.-The Director not being a Managing Director or a whole-time Director, or an officer of Government or of the Reserve Bank of India shall be paid fees by the National Bank as follows:-

(a)

For attending meetings of the Board .-Rs. 200 for each meeting.

(b)

For attending to any other work for the National Bank .-Such sum as the Board may fix from time to time having regard to the nature and amount of work involved.

5.

Payment of travelling and halting allowances to Directors

.-In addition to the fees to which a Director may be entitled under regulation 4, every such Director travelling in connection with the work of the National Bank shall be reimbursed his travelling and halting expenses if any, on such basis as may be fixed from time to time by the Central Government after consultation with the Reserve Bank.

6.

Resolution without meeting valid

.-A resolution in writing circulated to all the Directors in India and approved and signed by a majority of such Directors who are then in India, one of whom shall be the Chairman, shall be valid and effectual and shall be deemed to be the resolution passed by the Board on the date on which it is approved and signed by the last signatory to the resolution:

Provided, that any resolution passed as aforesaid shall be placed before the next meeting of the Board.

Chapter III

General Provisions

7.

Manner and form in which contracts binding on the National Bank may be executed

.- (1) Contracts on behalf of the National Bank may be made as follows:-

(i)

Any contract which, if made between private persons, would by law be required to be in writing and signed by the parties to be charged therewith, may be made on behalf of the National Bank in writing and signed by any person acting under its authority, express or implied, and may in the same manner be varied or discharged.

(ii)

Any contract, which, if made between private persons, would by law be valid although made by parol only and not reduced in writing may be made by parol on behalf of the National Bank by any person acting under its authority, express or implied, and may in the same manner be varied or discharged.

(2)

All contracts made according to the provisions of this regulation shall be effectual in law and shall bind the National Bank and all other parties thereto and their legal representatives.

8.

Accounts, receipts and documents of the National Bank by whom to be signed

.-The Chairman, the Managing Director, any whole-time Director and such officers of the National Bank or such other persons as the Board may authorise in this behalf by notification in the Gazette of India are hereby severally empowered for and on behalf of the National Bank to execute lease, deeds, transfers, conveyances, charges and other deeds relating to or affecting rights to or in immovable property, to endorse and transfer promissory notes, stock receipts, stocks, debentures, shares, securities and documents of title to goods, standing in the name of or held by the National Bank, and to draw, accept and endorse bills or exchange and other instruments in the current and authorised business of the National Bank and to sign all other accounts, receipts and documents connected with such business.

9.

Plaints, etc., by whom to be signed

.-Plaints, written statements, affidavits and other documents connected with legal proceedings may be signed and verified on behalf of the National Bank by any officer empowered by or under regulation 8 to sign documents for and on behalf of the National Bank and such officers may appear in or before any Court, tribunal or other body as the recognised agent of the National Bank for the purpose of the proceedings in that Court, tribunal or other body.

10.

No advance to be made to the officers of the National Bank without sanction of the Board

.-An advance may be made to the Chairman, Managing Director, whole-time Director, officer or other employee of the National Bank with the sanction of the authority specified in the relative regulations, rules, or schemes made or approved by the Board in terms of which the advance is to be made and where no authority is specified in the relative regulations, rules or schemes, as the case may be, the advance may be sanctioned-

(a)

to the Chairman, by the Board ;

(b)

to the Managing Director or the whole-time Director, by the Chairman;

(c)

to officers and other employees, by the Managing Director or a whole-time Director, and subject to such general or special directions as may be issued by the Chairman or the Managing Director, by any other officer specified by the Chairman in this behalf.

11.

Powers on behalf of the National Bank by whom to be exercised

.- (1) Subject to the provisions of the Act, any regulations made by the Board in regard to expenditure to be incurred by or on behalf of the National Bank and any directions, which may be given by the Chairman either generally or in any particular case in regard to the conduct of the business of the National Bank, the Managing Director and whole-time Directors are hereby severally empowered to exercise any or all the powers and do any or all acts and things which may be exercised or done by the National Bank.

(2)

Any other officer may, if authorised and to the extent that he is so authorised by the Chairman in this behalf, exercise all the powers in relation to matters pertaining to the department or office in which he is employed, and in relation to such matters do all acts and things which may be exercised or done by the National Bank, subject, however, to the conditions hereinafter specified, namely:-

(a)

the power to sanction or incur any expenditure on behalf of the National Bank shall be subject to regulations made by the Board;

(b)

any other power exercised or action taken shall be exercised or taken subject to such directions, if any, as may be given by any higher officer or authority in this behalf.

(3)

No power exercised, functions performed or act or thing done shall be deemed to be invalid or ineffective only on the ground that it is not a power exercised, functions performed, or act or thing done, by or on behalf of the National Bank, or that in the exercise of such power, performance of such function or the doing of any such act or thing, effect has not been given to any rule or direction referred to in sub-regulation (1) or in sub-regulation (2), or that in such rule or direction has been wrongly acted upon.

12.

Issue of bonds

.- (i) The bonds or debentures of the National Bank shall be issued over the signature of the Chairman, or the Managing Director, or any whole-time Director which may be printed, engraved, lithographed or impressed by such other mechanical process as the National Bank may direct.

(ii)

A signature so printed, engraved, lithographed or otherwise impressed shall be valid as if it had been inscribed in the proper handwriting of the signatory himself.

13.

Common seal of the National Bank

.-The common seal of the National Bank shall be affixed to any instrument only in the presence of at least two Directors who shall sign their names in the instrument in token of their presence, and such signing shall be independent of their signing of any person who may sign the instrument as a witness. Unless so signed as aforesaid, such instrument shall

be of no validity.

14.

Service of notice to National Bank

.-A notice may be served on the National Bank by delivering it to the Managing Director, any whole-time Director, or an officer authorised by the Managing Director in this behalf at, or by sending it by registered post to, the Head Office of the National Bank.

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